

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

Urban Marketing Group, Inc. by and thru Allen P. Brown, III,)
Chief Executive Officer, Monrovia, Liberia.....Petitioner)

Versus)

PETITION FOR
RE-ARGUMENT

John Hilary Tubman of the City of Monrovia, Montserrado County)
Republic of Liberia.....Respondent)

GROWING OUT OF THE CASE:

Urban Marketing Group, Inc. by and thru Allen P. Brown, III,)
Chief Executive Officer, Monrovia, Liberia.....Appellant)

Versus)

APPEAL

John Hilary Tubman of the City of Monrovia, Montserrado County)
Republic of Liberia.....Appellee)

GROWING OUT OF THE CASE:

John Hilary Tubman of the City of Monrovia, Montserrado County,)
Republic of Liberia.....Petitioner)

Versus)

PETITION TO COMPEL
ARBITRATION

Urban Marketing Group, Inc. by and thru Allen P. Brown, III,)
Chief Executive Officer, Monrovia, Liberia.....Respondent)

Heard: March 25, 2025

Decided: May 28, 2025

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

Rule IX of the Revised Rules of the Supreme Court of Liberia (1999), captioned:
Re-argument, provides in relevant part as follows:

Part 1: permission for – for good cause shown to the Court by petition, a re-
argument of a cause may be allowed only once when some palpable substantial
mistake is made by inadvertently overlooking some fact, or point of law.

Part 4: Where a concurring Justice has ordered the re-hearing, the cause shall be re-
docketed for examination and determination of the facts or points of law allegedly
overlooked in the original judgment by the Court *en banc*.

The present petition for re-argument stems from a February 18, 2024 Opinion delivered by this Court during its October Term A.D. 2024, in a regular appeal from a motion to vacate an arbitration award filed by the present petitioner, Urban Marketing Group, Inc. by and thru its Chief Executive Officer, Allen Brown, II against the respondent herein, John Hilary Tubman.

In that Opinion and the Judgment, this Court opined that the Constitution guarantees the obligation of contracts and prohibits the enactment of any law which might impair this right; that courts are under a duty to recognize, protect and preserve the sanctity of valid and enforceable contracts; that it is the law that where parties voluntarily submit their dispute to arbitration, the award thereof is binding and enforceable upon the parties, their heirs, executors, administrators and assigns, and may only be vacated by the court, upon written motion of a party, on any of the grounds stipulated under Section 64.11, sub-section 1, of the Civil Procedure Law; and that the parties having agreed to submit their dispute to arbitration arising under the provisions of a Joint Venture Agreement, and there being no proof of the existence of any of the grounds for vacating an arbitration award as provided for under the said Section 64.11(1) of the Civil Procedure Law, the confirmation of the arbitration award by the trial court was proper and within the scope of the law."

It is the Opinion and Judgment of February 18, 2024, that the petitioner has challenged contending that the Court made some palpable mistakes by overlooking certain point of law or fact. Hence, this petition for re-argument.

In the four-count petition for re-argument filed before this Court, the petitioner argues that this Court overlooked the fact that the petitioner filed before the lower court, a motion to vacate the arbitration award on grounds that the majority members of the board of arbitration exceeded their scope of authority by ordering the Joint Venture Agreement cancelled; that cancellation proceedings are separate and distinct from special proceedings which require a trial by jury in the absence of any provision in the Joint Venture Agreement; and that a petition for proper accounting is not a possessory action that would warrant the appellant being ousted from a property which he had singlehandedly developed.

To the contrary, the respondent filed an eight-count returns to the petition basically stating, that the instant petition for re-argument emanated from a petition to compel arbitration and not a petition for proper accounting as alleged by the petitioner; that while cancellation proceedings and summary proceedings

to recover possession of real property are separate and distinct from arbitration proceedings; however, where the parties in the Joint Venture Agreement agree to settle their dispute growing out of the contract by means of arbitration, that agreement removes the matter from the realm of the court, allowing the parties to constitute a board of arbitration for settlement of the dispute as per the arbitration agreement; and that the present petition for re-argument has no merit to withstand judicial scrutiny.

Having summarized the facts in the petition and the returns thereto, this Court says that the sole issue for our determination is whether re-argument will lie under the present facts and circumstances of this case?

We first quote verbatim the two pertinent clauses of the Joint Venture Agreement, regarding arbitration, as follows, to wit:

“14. In the event of any dispute between the Parties, whether the dispute relates to the interpretation of any provision of this Joint Venture Agreement, the non-compliance of any party to its terms or otherwise, the Parties agree to submit the dispute to arbitration irrespective of the justiciable character of the dispute. (our emphasis) arbitration shall commence by the aggrieved party by sending a notice of arbitration to the other Partner, identifying the dispute and its/his claims, and naming one (1) arbitrator. Within ten (10) days after receipt of the notice of arbitration from the aggrieved Party, the other Party shall respond and state its/his position, including counterclaims, if any, and name its/his own arbitrator. And within ten (10) days after the other Partner shall have responded, the two (2) arbitrators shall meet and decide on the third arbitrator, who shall serve as chairman of the Arbitral Panel; but if they cannot agree on the third arbitrator, then the Bishop of the United Methodist Church, the Bishop of the Episcopal Church, and the Bishop of the Roman Catholic Church, in the order presented, shall be the third arbitrator and chairman of the Arbitral Panel.

15. The Parties agree that any decision or award by the majority of the Arbitral Panel **shall be enforceable by a court of law without delving into the merits of the dispute.** (our emphasis) The Parties also agree that any refusal or failure of either Party to submit any dispute to arbitration shall be reason for a court of law to dismiss the cause of action not submitted to arbitration, and shall also be reason to obtain a court order to compel arbitration.”

We shall proceed to dispose of this petition for re-argument and the returns thereto, by jointly addressing the three (3) issues raised by the petitioner, to wit:

1) That the Court made a palpable mistake by overlooking the fact that the petitioner filed a motion to vacate the arbitration award on grounds that the majority members of the board of arbitration went beyond their scope of authority

by ordering the Joint Venture Agreement cancelled 2) That cancellation proceedings are separate and distinct from special proceedings which require jury trial in the absence of any provision in the Joint Venture Agreement 3) That a petition for proper accounting is not a possessory action that would warrant the petitioner being ousted from a property which he had singlehandedly developed.

To properly address these issues, we reiterate our position in the February 18, 2024 Opinion and Judgment of this Court, to the effect that the parties in the present petition for re-argument mutually entered a Joint Venture Agreement, and pursuant thereto, agreed to submit any dispute arising from the agreement to arbitration. This Court says, that by virtue of the parties signing the Joint Venture Agreement, the parties removed the issues surrounding their dispute from the realm of the court. Hence, the respondent complied with the provision of the arbitration clause of the Joint Venture Agreement by duly notifying the appellant of his disenchantment with the conduct of their business affairs, but the petitioner failed to respond or address the appellee's claims until the matter was referred to the trial court to compel the parties to arbitrate their dispute.

As to the three issues of the petition, the petitioner insists that the Court made a palpable mistake by overlooking the fact that the petitioner filed a motion to vacate the arbitration award on grounds that the majority members of the board of arbitration acted *ultra vires* by ordering the Joint Venture Agreement cancelled. This Court observes from the records, that at the commencement of the arbitration proceeding, and notice duly served upon the petitioner, the petitioner failed to respond to the claims asserted by the respondent/appellee, depriving itself of the opportunity to address the issues raised by the respondent/appellee. By this failure, the petitioner/appellant abandoned the right to protect its interest when it did not present any rebuttal evidence to the respondent/appellee's claim before the Board of Arbitration; hence, is estopped from raising said claims before this Court of last resort and which is prohibited from receiving evidence. *King, III et al v Cooper-Harris*, 40 LLR 70, 74 (2000). Notwithstanding this failure by the petitioner, the Arbitration Panel continuously served notices on dates of hearings on the petitioner, conducted hearings based on the information available before the said Panel, obtaining oral and documentary evidence from the respondent, and at one point, received a statement from a representative of the petitioner, and thereafter entered an award in conformity with the provisions of the Joint Venture Agreement and applicable laws.

This Court cannot rely on conjectures or speculation in determining the veracity of a litigant's claim; every claim or counterclaim must be substantiated by direct or indirect evidence, based on the prevailing facts and circumstances attendant to the situation, as proof thereof. It remains the law that only evidence alone will enable a court to decide with certainty the matter in dispute; and that the Supreme Court has held that due process in arbitration is satisfied where a party is afforded reasonable notice and an opportunity to be heard; that due process does not require the formalities of a court proceeding but necessitates a fair opportunity to present one's case; that where a party deliberately refused to appear for a hearing having been properly served notices of assignment, it cannot claim denial of its day in court, and that allegations of bias must be supported by compelling evidence rather than mere speculation. *Dennis et al. v. K & H Construction Company*, Supreme Court Opinion, March Term, 2008; *Harris v. Mercy Corps Liberia*, Supreme Court Opinion, March Term, 2006; *Cooper et al v Cooper Estate et al.*, 39 LLR 750, 757 (1999).

It is the law that "Once one of the parties properly invokes an arbitration agreement, it removes the matter from the realm of the court and the parties to the arbitration agreement are required to produce evidence before the arbitral tribunal." *Amhed v. Donzo*, 37 LLR 461, 464-465 (1994). Hence, this Court again holds, that the proper forum for the petitioner to have raised counterclaims to the issues proffered by the respondent was before the Board of Arbitration. This singular act would have permitted the Board to take evidence regarding these issues, and make a determination thereon. This not having been done by the deliberate refusal of the petitioner to file its response to the issues raised by the respondent, same constitutes a waiver. A waiver under our law is the voluntary and intentional relinquishment of a known right which, except for such waiver, the party would have enjoyed; it implies an election by a person to knowingly dispense with something of value or to forego some right or advantage which he might, at his option, have demanded or insisted upon; a waiver also operates to preclude a subsequent assertion of a right waived or any claim based thereon. *Juah v. Konneh*, 42 LLR 187, 191 (2004); *Kruah v. Weah*, 42 LLR 148, 152 (2004). It is also the law that "a petition for re-argument will not lie where the crux of the petition is to state how the Court should have ruled rather than stating the point of law or fact overlooked by the Court." *Greaves-McCrittty v. Holder*, Supreme Court Opinion, March Term A.D. 2012.

Also, this Court refers to clause 15 of the Joint Venture Agreement which is clear and unambiguous, and states, "...the Parties agree that any decision or award by the majority of the Arbitral Panel **shall be enforceable by a court of law without delving into the merits of the dispute.** (our emphasis). We are therefore taken aback by the lackadaisical attitude portrayed by the petitioner which knowing the existence of these clauses within the Agreement sat supine on its rights and now attempts to file its counter claims before this Court at first instance. The Supreme Court has opined in a plethora of cases to include the appeal from which the present petition for re-argument proceeded, that courts of law are under a duty to recognize, protect and preserve the sanctity of valid and enforceable contracts and that this Court, noting that the trial court's confirmation of the arbitration award aligns with constitutional protection of contractual obligations, especially where the appellant failed to establish tenable reasons for vacating the award, will not disturb the final ruling of the trial court. *Harris v. Mercy Corps/Liberia*, Supreme Court Opinion, March Term, 2006; *Norwegian Refugee Council v. Ernest F. Bana et al.*, Supreme Court Opinion, March Term, 2008; *Dennis et al. v. K & H Construction Company*, Supreme Court Opinion, March Term, 2008; *Keita v. Keita*, Supreme Court Opinion, March Term, 2016.

Hence, in the instant case, the petitioner having failed to state the fact or point of law inadvertently overlooked by the Court, but instead prescribing a method directing how the Court should have ruled, re-argument will not lie.

WHEREFORE AND IN VIEW OF THE FOREGOING, the petition for re-argument is denied and dismissed. The Clerk of this Court is ordered to send a Mandate to the court below commanding the Judge presiding therein to resume jurisdiction over this case and give effect to the Court's February 18, 2024 Judgment, affirming the arbitration award. Costs are ruled against the petitioner. AND IT IS HEREBY SO ORDERED.

Petition for Re-argument Denied

When this case was called for hearing, Counsellor John Saah Nyumah appeared for the petitioner. Counsellor J. Johnny Momoh of the J. Johnny Momoh and Associates Legal Chambers appeared for the respondent.